

ALITO, J., dissenting

Member said one word about the possibility that the prohibition of sex discrimination might have that meaning. Instead, all the debate concerned discrimination on the basis of biological sex.³⁶ See 110 Cong. Rec. 2577–2584.

Representative Smith’s motivations are contested, 883 F. 3d, at 139–140 (Lynch, J., dissenting), but whatever they were, the meaning of *the adoption of the prohibition* of sex discrimination is clear. It was no accident. It grew out of “a long history of women’s rights advocacy that had increasingly been gaining mainstream recognition and acceptance,” and it marked a landmark achievement in the path toward fully equal rights for women. *Id.*, at 140. “Discrimination against gay women and men, by contrast, was not on the table for public debate . . . [i]n those dark, pre-Stonewall days.” *Ibid.*

For those who regard congressional intent as the touchstone of statutory interpretation, the message of Title VII’s legislative history cannot be missed.

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Post-enactment events only clarify what was apparent when Title VII was enacted. As noted, bills to add “sexual orientation” to Title VII’s list of prohibited grounds were introduced in every Congress beginning in 1975, see *supra*, at 683, and two such bills were before Congress in 1991³⁷

³⁶ Recent scholarship has linked the adoption of the Smith Amendment to the broader campaign for women’s rights that was underway at the time. *E. g.*, Osterman, *supra*; Freeman, How Sex Got Into Title VII: Persistent Opportunism as a Maker of Public Policy, 9 L. & Ineq. 163 (1991); Barzilay, Parenting Title VII: Rethinking the History of the Sex Discrimination Provision, 28 Yale J. L. & Feminism 55 (2016); Gold, A Tale of Two Amendments: The Reasons Congress Added Sex to Title VII and Their Implication for the Issue of Comparable Worth, 19 Duquesne L. Rev. 453 (1981). None of these studies has unearthed evidence that the amendment was understood to apply to discrimination because of sexual orientation or gender identity.

³⁷ H. R. 1430, 102d Cong., 1st Sess., § 2(d) (as introduced in the House on Mar. 13, 1991); S. 574, 102d Cong., 1st Sess., § 5 (as introduced in the Senate on Mar. 6, 1991).